

Tentative Rulings for Department 403

Begin at the next page

(49)

Tentative Ruling

Re: ***Stellar Solar, Inc. v. Amazing Energy Partners, Inc. et al.***
Superior Court Case No. 22CECG02818

Hearing Date: August 5, 2026 (Dept. 403)

Motion: By Plaintiff Stellar Solar, Inc. to Strike Amazing Energy Partners, Inc.'s Answer and Cross-Complaint

Tentative Ruling:

To continue the motion to strike to Wednesday October 14, 2026, at 3:30 p.m. in Department 403, to allow defendant Amazing Energy Partners, Inc. one last chance to retain new counsel, and to file a substitution of attorney on or before 5:00 p.m., October 2, 2026.

**If oral argument is timely requested, it will be entertained on
Thursday, August 6, 2026, at 3:30 p.m. in Department 403.**

Explanation:

Plaintiff Stellar Solar, Inc. ("Plaintiff") moves to strike the answer and cross-complaint filed on behalf of defendant Amazing Energy Partners, Inc. ("Defendant"). Plaintiff submits that Defendant is now an improperly, self-represented business entity.

The court has discretion under Code of Civil Procedure section 436, subdivision (a), to strike out any "irrelevant, false, or improper matter inserted in any pleading," or, under subdivision (b), the court may strike out any part, or all, of a pleading "not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) The grounds to strike pleadings under subdivision (b) is limited to improprieties in its form or in the procedures pursuant to which it was filed. (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528.)

A business entity is not a natural person, and therefore cannot appear in an action *in propria persona*, but instead must appear only through counsel. (See *Merco Construction Engineers, Inc. v. Municipal Court*. (1978) 21 Cal.3d 724, 731 [regarding corporations].) A complaint, an answer, or any pleading filed on behalf of an unrepresented corporation may be stricken, however, the court may grant leave allowing the corporation to retain counsel. (*CLD Construction, Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1147; *Himmel v. City Council* (1959) 169 Cal.App.2d 97, 100.)

Here, Defendant was represented by counsel when Defendant filed Defendant's answer and cross-complaint. However, Defendant's attorney obtained an order to withdraw on March 4, 2026. The order indicated that the withdrawal would be effective upon the filing of the proof of service of the orders on Defendant. A proof of service was filed on March 16, 2026.

The order allowing Defendant's attorney to withdraw was made after due notice was given to Defendant. The motion and the order were drawn on the mandated Judicial Council forms, which are designed to be easily understood by non-attorney litigants. The order thus gave Defendant the following "NOTICE TO CLIENT" (set off from the rest of the form in a text box):

"Your present attorney will no longer be representing you. You may not in most cases represent yourself if you are one of the parties on the following list: ...A corporation.... If you are one of these parties, YOU SHOULD IMMEDIATELY SEEK LEGAL ADVICE REGARDING LEGAL REPRESENTATION. Failure to retain an attorney may lead to an order striking the pleadings or to the entry of a default judgment."

(Order filed March 4, 2026, at Page 2, Item 10 (bolded and upper case text in the original).)

Thus, Defendant was notified: 1) of its attorney's withdrawal; 2) that as an entity it could not represent itself, and thus it needed to immediately seek other counsel; and 3) that the consequences of not doing so might be "an order striking the pleadings or...the entry of a default judgment." (March 4, 2026, Order, p. 2.) Defendant has had over four months to retain other counsel, and Defendant has not done so. Defendant has not filed any response to this motion. The court continues the matter for one final period to allow Defendant to cure.

The court notes that Plaintiff seeks to strike the entirety of Defendant's answer. Sylvia Donaldson ("Donaldson") and James Bond ("Bond") filed answers concurrently with Defendant. Donaldson and Bond, being individuals, may maintain their answers in propria persona. Thus, the motion to strike is denied to the extent it seeks to affect defendants Donaldson and Bond.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** August 4, 2026.